

**STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF WAYNE
FAMILY DIVISION**

ADRIENNE M. ROCKENHAUS,

Plaintiff/Counter-Defendant,

v.

CONRAD A. ROCKENHAUS,

Defendant/Counter-Plaintiff.

Case No. 26-104594-DO

Hon. Nicole Goodson

ALDRICH LEGAL SERVICES, PLLC
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CONRAD A. ROCKENHAUS
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**PLAINTIFF/COUNTER-DEFENDANT'S VERIFIED MOTION TO SET ASIDE
DEFAULT OF COUNTERCLAIM**

Plaintiff/Counter-Defendant, Adrienne Rockenhaus, by and through her attorneys, Aldrich Legal Services, PLLC, submits the following as her Verified Motion to Set Aside Default pursuant to MCR 3.210(B)(3).

1. Plaintiff/Counter-Defendant, Adrienne Rockenhaus, filed this divorce action on April 9, 2026, assigned to Judge Abraham.
2. Defendant/Counter-Plaintiff, Conrad Rockenhaus, was personally served with the Summons and Complaint, and acknowledged service on April 14, 2026.
3. Defendant/Counter-Plaintiff filed a Counterclaim with his Answer to Complaint on April 15, 2026.
4. Plaintiff/Counter-Defendant's Answer to Counterclaim was due on May 6, 2026.

5. Plaintiff/Counter-Defendant's counsel filed a Motion to Withdraw as Counsel on April 23, 2026.
6. The Motion to Withdraw as Counsel was originally set for June 4, 2026, but Judge Abraham accelerated the hearing date and set it for May 12, 2026.
7. Defendant/Counter-Plaintiff filed a Default Request and Entry against Plaintiff/Counter-Defendant on his Counterclaim on May 12, 2026.
8. A default was entered against Plaintiff/Counter-Defendant for failure to answer or otherwise defend the counterclaim.
9. On or about May 4, 2026, an Order Reassigning Case was entered and this case was subsequently reassigned to Judge Goodson.
10. Counsel for Plaintiff/Counter-Defendant contacted Judge Goodson's chambers to see if the Motion to Withdraw could proceed on the May 12th dates scheduled for hearing, but was informed that a new Praecipe would need to be submitted.
11. A new Praecipe for hearing with Judge Goodson was submitted on May 6, 2026.
12. Due to a reassignment of the Judge, and adjournment of the hearing date on the Motion to Withdraw as Counsel, no decision should be made on the default until Aldrich Legal Services, PLLC is released as attorney of record to allow Plaintiff/Counter-Defendant to obtain new counsel or proceed in pro per.
13. MCR 3.210(B)(3) provides authority in domestic relations actions for the Court to set aside a default before entry of a default judgment upon a showing of good cause by the defaulted party.

14. There is good cause for not filing an Answer the Counterclaim, because Aldrich Legal Service believed that it would be withdrawn from representation on May 12, 2026, before the Answer to Counterclaim was due.
15. Good cause exists as it was reasonable for Aldrich Legal Services to rely on being granted an Order to Withdraw on the May 12, 2026, hearing date.
16. On April 24, 2026, Plaintiff/Counter-Defendant instructed Aldrich Legal Services not to continue with this case, and that Plaintiff/Counter-Defendant would not read or respond to emails from Aldrich Legal Services.
17. The attorney client relationship between Plaintiff/Counter-Defendant and Aldrich legal services has broken down entirely making it impossible for Aldrich Legal Services to respond to Defendant/ Counter-Plaintiff's filings while waiting to be released as attorney of record.
18. Plaintiff/Counter-Defendant should be permitted to proceed to resolution of her original Complaint for Divorce.
19. Plaintiff/Counter-Defendant should be given the opportunity to engage in these proceedings to reach a fair and equitable divorce settlement.
20. Plaintiff/Counter-Defendant is requesting that this Court set aside the Default against her.
21. Defendant/Counter-Plaintiff will not be prejudiced by the setting aside of the Default on the Counter-Claim.
22. This case is only one month into the time standard for entry of a divorce without minor children. Pursuant to MCL 552.9f, "No proofs or testimony shall be taken in any case for divorce until the expiration of 60 days from the time of filing the bill of

complaint, except where the cause for divorce is desertion, or when the testimony is taken conditionally for the purpose of perpetuating such testimony”. Here, manifest injustice would result if the default was entered and meaningful participation of Plaintiff/Counter-Defendant were not permitted in the process at the benefit of both parties.

23. Further, there are marital assets and debts at issue which have not yet been fully identified as neither party has exchanged the required Domestic Relations Verified Information Form.

24. Any award pursuant to Default Judgment would be premature and risks potential unequitable distribution of marital assets and debt.

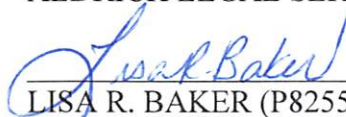
WHEREFORE, Plaintiff/Counter-Defendant, Adrienne Rockenhaus, respectfully requests that this Honorable Court:

- A. Enter an Order setting aside the default pursuant to MCR 3.210(B)(3);
- B. Allow Plaintiff/Counter-Defendant to submit an Answer to Counterclaim; and
- C. Order any other relief the Court deems just and equitable.

Respectfully submitted,

ALDRICH LEGAL SERVICES, PLLC

Dated: 5-13-24



LISA R. BAKER (P82555)

Attorney for Plaintiff/Counter-Defendant

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BRIEF IN SUPPORT OF MOTION TO SET ASIDE DEFAULT

Plaintiff/Counter-Defendant, ADRIENNE ROCKENHAUS, by and through her counsel, Aldrich Legal Services, PLLC, states the following as her Brief in Support of Motion to Set Aside Default:

Defendant has good cause for not responding within the 21-day period that warrants setting aside the default. Additionally, manifest injustice would result if the default was permitted to stand. For these reasons, the entry of default should be set aside.

Argument

MCR 3.210(B)(3) provides for setting aside a default before entry of a Default Judgment in domestic relations actions and states, "a motion to set aside a default, except when grounded on lack of jurisdiction over the defendant or subject matter, shall be granted only upon verified motion of the defaulted party showing good cause."

Plaintiff/Counter-Defendant has good cause to set aside the default. Although applying MCR 2.603(D)(1), what constitutes good cause is discussed in *Koy v. Koy*, 274 Mich App 653, 654; 735 NW2d 665 (2007), where the Court of Appeals states,

Good cause sufficient to warrant setting aside a default or a default judgment may be shown by:

- (1) A substantial procedural defect or irregularity, or
- (2) A reasonable excuse for failure to comply with the requirements that created the default. *Saffian v. Simmons*, 267 Mich App. 297, 301-302, 704 NW2d 722 (2005), *aff'd* 477 Mich 8, 727 NW2d 132 (2007).

Plaintiff/Counter-Defendant's good cause is demonstrated by the fact that she had a reasonable excuse for not complying with the filing deadline.

Plaintiff/Counter-Defendant submits that she had good cause not to answer the Counterclaim, because it was unforeseeable the an Order for Reassignment of Judge would issue, and the Motion to Withdraw as Counsel would not proceed on May 12, 2026 as scheduled. Good cause exists as it was reasonable for the parties to rely entering an Order to Withdraw as Counsel on May 12, 2026 with Judge Abraham.

Additionally, manifest injustice would result if the default is not set aside. The parties parties acquired property and assets during the course of their marriage. Plaintiff/Counter-Defendant is entitled to a fair and equitable distribution of the marital estate. The issue of property division is a complex one, and each case should be decided on its own merits. Manifest injustice may result if the default were not set aside. Plaintiff/Counter-Defendant should be afforded the opportunity to be heard on this issue so that the Court may make a fair and equitable property division.

Due to the reassignment of the presiding Judge and adjournment of the hearing on the Motion to Withdraw as Counsel, no decision should be made until Aldrich Legal Services,

PLLC, is released in order to allow Plaintiff/Counter-Defendant to obtain new counsel or proceed in pro per.

This case is only one month into the time standard for entry of a divorce without minor children. Pursuant to MCL 552.9f, "No proofs or testimony shall be taken in any case for divorce until the expiration of 60 days from the time of filing the bill of complaint, except where the cause for divorce is desertion, or when the testimony is taken conditionally for the purpose of perpetuating such testimony". Here, manifest injustice would result if the default was entered and meaningful participation of Plaintiff/Counter-Defendant were not permitted in the process at the benefit of both parties.

Further, there are marital assets and debts at issue which have not yet been fully identified as neither party has exchanged the required Domestic Relations Verified Information Form (DRVFIF). Any award pursuant to Default Judgment would be premature and risks potential unequitable distribution of marital assets and debt.

Conclusion

For the reasons set forth above, Plaintiff/Counter-Defendant objects to the entering of the default and requests the Court to set aside the default against her pursuant to MCR 3.210(B)(3).

WHEREFORE, Plaintiff/Counter-Defendant, Adrienne Rockenhaus, respectfully requests that this Honorable Court grant her Motion to Set Aside Default and enter an Order stating;

1. That Plaintiff/Counter-Defendant has met the requirements of MCR 3.210(B)(3) by a showing of good cause;
2. That the Default shall be set aside; and

3. Plaintiff/Counter-Defendant shall be permitted to file an Answer to Counterclaim.

Respectfully submitted,

ALDRICH LEGAL SERVICES, PLLC

Dated: 5-13-26



LISA R. BAKER (P82555)